T. SRINIVASARAGHAVAN
ADVOCATE
OFFICE: New No: 16, Old Door No: 26, Vasudevapuram,
ICE House,Triplicane,Chennai - 600 005

CONT NO: S006400375
REF: AGSR23021301478 BY RPAD 13-02-2023

1478

1.BORROWER	MR SANDESH DHANAJI KARAVKAR 350 MURBIGAON SECTOR 19 NEAR KPC COLLAGE KHARGHAR RAIGARH(MH) MAHARASHTRA 410210
2.GUARANTOR	MR DHANAJI PADU KARAVKAR ROOM NO 350 MURBI VILLAGE SECTOR 19 NEAR SHIV TEMPLE KHARGHAR RAIGARH(MH) MAHARASHTRA 410210

Sir,

Under instructions from our client Sundaram Finance Limited having its registered office at No. 21, Patullos Road, Chennai – 600 002, we hereby issue the following notice to you,

1. First of you have approached our client with a request to extend loan facility for the purchase /in respect of a 2022 model MAHINDRA JEETO vehicle (and any other vehicle) and the said request was acceded to by our client. Thereupon the first of you had entered into a loan contract dated 27-09-2022 vide loan cont no. S006400375 with our client in respect of the loan facility for purchase vehicles bearing chassis and engine No. MA1KP2UGEN3E59970, UGN3F95261 respectively in which total loan amount of Rs. 671260 /- is repayable in 59 installments. The 1st installment commenced on 10-11-2022 with the last installment ending on 10-09-2027. The second/third/fourth of you joined as co-borrower/guarantor(s) guaranteeing the due performance of the obligations of the first of you under the agreement. In consideration of extending the loan facility, first of you has hypothecated and created a charge over the vehicle in favour of our client. The factum of hypothecation has also been recorded in the registration certificate of the vehicle by the Registering authority concerned, bearing regn no. MH-46-BU-4237
2. Under the terms of the agreement, first of you had agreed to pay the loan amount in installments promptly to our client whether previously demanded or not, and in case of default, the first of you had agreed to pay additional interest @ 36% per annum over the amount in arrears from time to time till payment thereof. However, the levy of additional interest will not in any way absolve the liability of first of you under the agreement to pay the installments on due dates.
3. Our client states that contrary to the said undertaking, first of you had been highly irregular in payment of installments and committed default from payment of 2nd installment onwards which fell due on 10-12-2022. First of you neither paid any amount nor surrendered the vehicle despite our client's repeated demands in this behalf.
4. As on 13-02-2023, a sum of Rs. 523424.18 is due and payable by of the first of you, the details of which are furnished hereunder:

RLAD BPC NANDANAM EXTN <600035>
RLAD B RT026953687IN
Counter No:2,OP-Code:02
To:MR SANDESH DHANAJI KARAVK,
Kharghar S.O, PIN:410210
From:AVON GLOBAL SOLUTIONS PVT LTD
Wt:12grams, 889
FM:25.00, ,01/03/2023 ,10:16
<<Track on www.indiapost.gov.in>>

RLAD BPC NANDANAM EXTN <600035>
RLAD B RT026953695IN
Counter No:2,OP-Code:02
To:MR DHANAJI PADU KARAVKAR,
Kharghar S.O, PIN:410210
From:AVON GLOBAL SOLUTIONS PVT LTD
Wt:12grams, 889
FM:25.00, ,01/03/2023 ,10:16
<<Track on www.indiapost.gov.in>>

SETTLEMENT FIGURE AS OF 13-02-2023

Amount Outstanding	Rs.	651260
Additional Interest	Rs.	1605
Incidentals	Rs.	0
Insurance	Rs.	0
Memorandum Charges	Rs.	2000
	Rs.	654865
LESS:		
Rebate	Rs.	129006.82
Insurance Credit	Rs.	0
Incidental Credit	Rs.	2434
Additional Interest Recd.	Rs.	0
Total	Rs.	131440.82
TOTAL as on 13-02-2023	Rs.	523424.18

Please note that the figure holds good only till 13-02-2023 and will vary thereafter. The above figure is also subject to realisation of cheque, if any, already issued by you and receipted by our client and if any cheque already issued by you is returned unpaid, the above figure will vary.

5. The liability of the second/third/fourth of you as co-borrower/guarantor is continuing and co-extensive with that of the borrower i.e., the first of you. Therefore, both/all of you are jointly and severally liable to pay the amount due to our client under the said contract.

6. In the circumstances, under specific instructions from our client, we hereby call upon both/all of you to pay the above amount immediately or surrender the subject hypothecated vehicle to our client's branch office nearer to you in good workable/road worthy condition. Failing compliance, our client will be constrained to take steps as provided under the terms of the loan agreement and as open to it under Law.In the event of the vehicle being surrendered to our client, our client would sell the same for the best price it fetches in its as is where is condition and appropriate the sale proceeds towards the amount due and payable under the loan contract. If there is any shortfall, our client reserves its right to initiate appropriate legal proceedings against both/all of you, including arbitration proceedings in terms of the loan/guarantee agreements executed by both/all of you with our client, for recovery of the said amount.

7. We would like to remind you that your credit history with our client is provided to Credit Bureaus – CIBIL/Equifax/Experian/Crif Highmark on a regular basis as mandated by Reserve Bank of India. On payment of the agreed settlement amount, your status will be updated as 'Settled' or 'Post write off settled' with NIL outstanding in the Credit Bureaus referred herein.

8. This notice is issued without prejudice to the claim against other guarantors/partners/directors and any other asset as mentioned in the first schedule to the loan agreement. This is also without prejudice to the dues payable by any/all of you under any other account or facility availed by you.

It is further to be noted that for all the accounts for which moratorium has been granted due to the outbreak of Covid pandemic as directed by Reserve Bank of India, the installment period has been extended as was duly communicated to you and the interest for the moratorium period, in addition to the amount mentioned above, shall be payable separately.

T. SRINIVASARAGHAVAN
Advocate

ADVOCATE

mail : tsrassociates@yahoo.com,tsrassociates.adv@gmail.com